

Confidentiality agreement

MUTUAL

Made between:

1 **Pacheco Studios**, represented by **Tomás Pacheco**, tax no. _____, of _____, of _____ (“**Pacheco Studios**”); and
2 _____, company / tax no. _____, registered at _____, represented by _____, as _____ (the “**Client**”),

together the “Parties” and each a “Party”.

1. Purpose

The Parties will exchange information in the course of a full interview and audit of the Client’s business (conversations with the owner and the team, review of processes, figures and tools), to identify opportunities for improvement and automation (the “**Purpose**”).

Details: _____
e.g. audit of processes and sales

2. Confidential information

All non-public information that one Party discloses to the other in connection with the Purpose, in any form (oral, written, digital or by on-site observation), is confidential, in particular: financial figures, revenue, prices and margins, customers and suppliers, staff data, internal processes, passwords and access, plans and strategies, as well as Pacheco Studios’ methods, proposals, documents and tools. This includes notes and analyses containing such information.

3. Exceptions

Information is not confidential if it: (a) is or becomes public through no fault of the receiving Party; (b) was demonstrably already known to it; (c) was lawfully received from a third party without a duty of confidence; (d) was independently developed; (e) must be disclosed by law or by order of an authority, in which case the Party notifies the other where the law allows and discloses only what is strictly necessary.

4. Obligations

The receiving Party shall: (a) use the information only for the Purpose; (b) not disclose it to third parties without the other Party’s written consent; (c) share it only with collaborators who need it for the Purpose and are bound by an equivalent duty of confidence, remaining responsible for them; (d) protect it with at least the same care as its own information; (e) promptly report any unauthorised access or disclosure.

5. Personal data and digital tools

Personal data (of customers or staff) is processed in accordance with Regulation (EU) 2016/679 (GDPR), only for the Purpose. If ongoing processing on the Client’s behalf becomes necessary, the Parties will sign a separate data processing agreement. Pacheco Studios does not enter the Client’s confidential information into third-party services, including artificial intelligence tools, that use it to train models or make it available to others, and anonymises data wherever possible.

6. Return and deletion

On request or at the end of the collaboration, the receiving Party returns or deletes the information within 15 days. Copies kept by law or in automatic backups remain confidential.

7. Ownership and publicity

This agreement transfers no rights in the information: the Client's remains the Client's, and Pacheco Studios' methods, templates and materials remain Pacheco Studios'. Neither Party is obliged to enter into any further contract. Pacheco Studios will not present the Client as a case study or publish its figures without written consent.

8. Term

This agreement takes effect on signature. The duties of confidence last 3 (three) years from the last exchange of information and, for trade secrets, for as long as they remain secret.

9. Breach

A Party in breach is liable for the damage caused, as provided by law. The other Party may also seek urgent relief to stop the breach.

10. Governing law

This agreement is governed by the law of ^{Romania / Portugal}_____. Disputes are first settled amicably and, failing that, by the competent courts of ^{city}_____.

11. Final provisions

This is the Parties' entire agreement on confidentiality. Changes must be in writing. If a clause is invalid, the others remain in force. Signed in two originals, one for each Party; electronic signatures are accepted.

Signed in ^{place}_____ on ^{-- / -- / --}_____.

FOR PACHECO STUDIOS

Signature

Name

FOR THE CLIENT

Signature

Name